

PASSED

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 41-004
Amendments to Title 5 of the Chickasaw Nation Code
(Initial Appearance)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for criminal procedure and desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature authorizes and approved that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 5, Article A, Section 5-501.4 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red and deletions are stricken through):

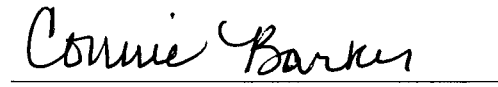
SECTION 5-501.4

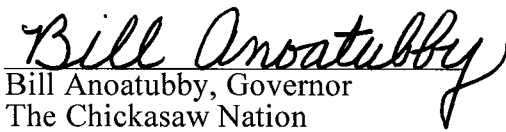
INITIAL APPEARANCE.

A. Initial Appearance. Initial Appearance is the bringing of an accused person before the Court, informing him of the charge against him and of his rights, receiving his plea, and setting bail. Initial Appearance shall be held in open court upon the appearance of an accused in response to a Criminal Summons or Citation or, if the accused was arrested in response to a warrant and confined, within seventy-two (72) hours of the arrest, Saturdays, Sundays, and legal holidays excepted. If the accused is arrested without a warrant and confined, the arresting law enforcement officer must complete an Affidavit of Probable Cause to Make Warrantless Custodial Arrest and present it to a judicial officer within forty-eight (48) hours, ~~Saturdays, Sundays and legal holidays excepted~~, for determination of probable cause to detain the accused until arraignment is held.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on December 15, 2023, by a vote of 12 ayes, 0 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:  Date: DEC 15 2023
Bill Anoatubby, Governor
The Chickasaw Nation

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Explanation:

This resolution amends the Chickasaw Nation Code to require a determination of probable cause of persons arrested without a warrant within 48 hours of arrest.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature